

Judgment Sheet
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN.
(JUDICIAL DEPARTMENT)

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Writ Petition No.7193 of 2023.

Muhammad Nadeem Anjum

Versus

Senior Member/Member (Revenue) Board of Revenue
Punjab Lahore & others.

J U D G M E N T.

Date of hearing: **24.06.2025.**

Petitioner by: Syed Athar Hassan Bukhari,
Advocate.

Respondents #1 to 6 by: Kanwar Sajid Ali, Assistant
Advocate General.

AHMAD NADEEM ARSHAD, J. Through this Constitutional Petition, filed under *Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973*, the petitioner impugned the orders of revenue hierarchy whereby respondent No.7 was appointed as permanent *Lambardar* and declared her entitled to get the State land measuring 105 *kanals* 10 *marlas* as *Lambardari* grant

2. Facts in brevity are that after the demise of permanent *Lambardar* namely Muhammad Akram (father of the petitioner) post of *lambardar* of Chak No.125/10-R, Tehsil Jehanian, District Khanewal fell vacant; that applications were invited to fill-up the said vacancy; that 49 applications were received out of which 41 candidates surrendered in favour of

the other candidates and resultantly 08 candidates remained; that reports were called from the Tehsildar, Assistant Commissioner/Collector who submitted their respective reports on 19.06.2017 and 29.06.2017 respectively; that respondent No.3 keeping in view said reports as well as providing opportunity of hearing to the concerned candidates vide order dated 27.04.2019 appointed respondent No.7- Shumaila Majeed as permanent *Lambardar*; that through said order it was also observed that the land under possession of the previous *lambardar* as *Lambardari* grant be also recovered and given on *superdari*; that in compliance of said order land measuring 105 *kanals* 10 *marlas* reserved for *Lambardari* grant was handed over to Muhammad Yaseen *Lambardar/superdar* through Rapt No.380 of *Roznamcha Waqiyati* dated 08.05.2019. Feeling aggrieved the petitioner, Intizar Hussain, Muhammad Asif Akram and respondent No.7 preferred their separate appeals. Respondent No.2 dismissed the appeals of the petitioner, Intizar Hussain and Muhammad Asif Akram through order dated 19.01.2021, however, allowed the appeal of respondent No.7.

The petitioner impugned the order dated 19.01.2021 through filing revision of revision (ROR No. 202 of 2021) whereas Intizar Hussain assailed said order through revision of revision (ROR No.25 of 2021).

Respondent No.1 dismissed both the RORs i.e. ROR No.202 of 2021 and ROR No.25 of 2021 through consolidated order dated 11.04.2023.

That after promulgation of Notification No.144-2020/54-C.V. dated 18.02.2020, respondent No.7 moved an application for allotment of land under *Lambardari* grant and through order dated 29.03.2021 she was declared entitled for allotment of State land measuring 105 *kanals* 10 *marlas* reserved for *Lambardari* grant. The petitioner assailed said order through preferring an appeal which was dismissed by respondent No.2 vide order dated 12.06.2021.

The petitioner filed ROR No.1153 of 2021 against the orders dated 29.03.2021 and 12.06.2021 passed by respondent No.3 & 2, which was dismissed by respondent No.1 vide separate order dated 11.4.2023.

The petitioner impugned both the orders through instant Constitutional Petition.

3. I have heard learned counsel for the parties at full length and perused the record with their able assistance.

4. First of all to consider the grievance of the petitioner with regard to appointment of respondent No.7 as a *Lambardar*, it is observed that the controversy remained between the petitioner and respondent No.7 as no other contesting candidate assailed the orders of revenue hierarchy any further and the same attained finality to their extent.

5. Learned counsel for the petitioner maintains that the predecessor-in-interest of the petitioner namely Ch. Ghulam Din was appointed as *Lambardar* in the year 1940 and after his demise his son namely Ahmad Din was appointed as *Lambardar* and after his death father of the petitioner namely Muhammad Akram was appointed as *Lambardar* who passed away on 16.03.2014. He states that as the petitioner's forefather remained *Lambardar*, therefore, he has preference right to be appointed as *Lambardar*; that the petitioner under hereditary claim secured highest marks i.e. 75 whereas respondent No.7 got 65 marks; that the petitioner was not convicted in any case; that respondent No.7 is a woman who is serving in PIA on contract base and lives in Lahore, therefore, she cannot perform the duties of the *Lambardar* efficiently, but said aspects were not considered in its true perspective by the revenue *fora* while passing the impugned orders.

6. No doubt the petitioner secured 75 marks as against 65 marks allocated to respondent No.7. But it is reported that against the petitioner FIR No.27/2014, under section 382/506-B/379/411/34 PPC, FIR No.78/2015, under section 506-B/337-F(i)/337-L(2)/148/149 PPC, FIR No.180/2015, under Sections 379/341/337-A(i)/337-F(i)/337-L(2)/148/149, FIR No.157/2016 under Section 506/353/186/148/149 PPC, FIR No.154/2016, u/s 337-A(i)(ii)/337-L(2)/148/149 PPC, FIR No.156/2016, under section 337A(i)(ii)/337-F(1)/337-L(2)/148/149 PPC, and FIR

No.47/2017 under section 13/20/65 A.O. were registered. He is owner of land measuring 06 *kanals* 03 *marlas* and possessed matric qualification. As per report of Tehsildar he is illegal occupant over the state land reserved for Five Marla Scheme. Although, the petitioner has been discharged from two cases, not nominated in two other cases but it is matter of fact that FIRs were registered against him in different police stations and trial of some criminal cases are still pending. In view of that the District Collector concluded that he remained involved in criminal activities.

7. Whereas respondent No.7 is permanent resident of the concerned Chak and she possessed the degree of MBA and no criminal case was ever registered against her. There is no evidence on the record to suggest that she was serving in PIA at the time of the application and its scrutiny.

8. Office of *Lambardar* is an administrative arrangement to serve as a link between the villagers and local authorities. No one has a vested right to be appointed as a *Lambardar*, rather Revenue Authorities make a selection for the post as per criteria set out in Rule 17 of the West Pakistan Land Revenue Rules, 1968 (herein after referred to as **the Rules**) and have to find the most suitable candidate for the job who may be capable to discharge the duties inter-alia in terms of Rule 22 of the Rules. Position of *Lambardar* is of a very high eminence and erudition according to the prevalent and traditional norms in rural economy. To appoint a person as a

Lambardar in a Revenue Estate is of pivotal importance since it was a leadership position and the very conferment of title appointment as *Lambardar* entitled to certain privileges including high social status in the locality and a respectful identity with dignity in rural society. Personal influence, character, ability and freedom from indebtedness are prerequisite for the appointment of the *Lambardar*. The provision of Section 36 of the West Pakistan Land Revenue Act, 1967 and instructions in Rule 17 of the Rules, are required to be kept in view. The relevant authorities are the best judge to select the person best suited for the purpose with a view to facilitate performance of administrative functions of *Lambardar*. The factor and the points to be considered by the competent authorities are the fitness or the competence of a person to act as a *Lambardar* as well as strength or character, education knowledge and engagements in nation building activities and capacity to discharge the rights and obligations towards his fellow beings alongwith the disqualifications prescribed by the competent authority in rule 18(2) of the Rules.

9. Although Rule 19 (2)(d) of the Rules lays down that female is not ordinarily eligible for the office but may be appointed where the special reasons existed for her appointment.

10. The Honourable Supreme Court of Pakistan in case titled “MUSHTAQ HUSSAIN versus Mst. NASEEM”

AKHTAR etc.” (PLD 1982 Supreme Court 271) held as under:-

“Under rule 19(2)(d) of the West Pakistan Land Revenue Rules, 1968 a female is not ordinarily eligible for the office of a headman but may be appointed when she is the sole owner of the estate for which the appointment has to be made, or for special reasons in other cases. Under this rule a woman can be appointed as Lambardar. Therefore, there was no violation of the law and the orders of the Revenue Authorities are not without jurisdiction.”

11. Even otherwise it is clearly against the command of Article 25(2) of the Constitution of Islamic Republic of Pakistan, 1973 for non-appointment of a female as a *Lambardar* merely on the basis of her gender. Refusal to appoint a female as *Lambardar* merely on account of her gender would amount to deprivation of the property reserved for *Lambardari* grant. Provision of Rule 19(2)(d) of the Rules is thus ultra-vires to the Constitution and therefore, of no legal effect. A female cannot be ignored for appointment of *Lambardar* only on the ground of gender as no bar existed in this regard.

12. The Honourable Supreme Court of Pakistan while elaborating Article 25(2) of the Constitution of Islamic Republic of Pakistan, 1973 in a case titled as “SHRIN MUNIR and others versus GOVERNMENT OF PUNJAB through Secretary Health Lahore and another” (PLD 1990 SC 295) observed that any discrimination against women for the sole reason that they are female has been held to be violative of Article 25 of the Constitution in the following manner: -

“Clause (2) of Article 25 prohibits distinction on the basis of sex alone. However, the very next clause (3) controls the rest of Article 25 by providing that “nothing in this Article shall prevent the State from enacting any special provision for the protection of women and children.” It implies, therefore, that while the difference on the basis of sex can be created and maintained, it shall be done only in those cases where it operates favorably as a protective measure for and not for making a distinction, is thereby reduced to only that category wherein sex is adopted as a standard for discriminating against females generally and against males only if it is not as a measure protective of females. Discrimination against a group or an individual implies making an adverse distinction with regard to same benefit, advantage or facility. All pervasive nature of this constitutional provision is self-evident.”

13. This Court in a case titled “Mst. NASREEN IQBAL versus MEMBER (REVENUE), BOARD OF REVENUE, PUNJAB, LAHORE and another” (PLD 1993 Lahore 423) while considering Rule 19(2)(d) of the Rules 1968 observed that said clause certainly places females at a disadvantage and clause (d) of Sub-rule(2) of Rule 19 of the Rules declared to be ultra-vires to the Constitution and is, therefore, of no legal effect and held as under:-

“Viewed from this angle, it is but obvious that clause (d) of sub-rule (19) clearly offends against the command of sub-Article (2) of Article 25 of the Constitution of Islamic Republic of Pakistan, 1973. On its plain wording the only ground for non-appointment of a female as a Lambardar is her sex. The discrimination is so obvious that it calls for no further comment except for notice may be taken of the argument of the learned counsel for the respondent that clause (d) is not violative of sub-Article (2) of Article 25 of the Constitution, as it does not completely forbid the appointment of female Lambardar, but merely provides that ordinarily a female should not be appointed. This argument, on the face of it, is fallacious as the clause in question certainly places females at a disadvantage.”

This view was followed by this Court in number of cases. For reference see “Ch. ASGHAR ALI versus MEMBER BOARD OF REVENUE and others” (1993 CLC 858), “Mst. ZUBAIDA BEGUM versus MEMBER (JUDICIAL), BOARD OF REVENUE, PUNJAB, LAHORE and another” (2002 YLR 3392), “Mst. SARWARI BIBI versus ARSHAD ALI KHAN and 2 others” (2005 CLC 1899) and “MUHAMMAD ANWAR versus MUHAMMAD IKHLAS and 6 others” (PLD 2016 Lahore 262).

14. Respondent No.7 could not be ignored for her appointment as *Lambardar* only on the ground of her being a female, if she was otherwise most suitable for such appointment. Appointment of such lady as a *Lambardar* was not in contravention of any law or the rules.

15. It is settled principle that in *Lambardari* cases due weight is given to the choice of the Collector unless it is perverse, foolish or illegal. The choice of the Collector which is reasonable and appropriate should not be interfered. If the collector exercises its discretion in a reasonable manner taking into consideration all matters which may be relevant to the suitability of an appointment, his decision should be allowed to stand. Where the Collector has applied his mind giving due thought to all the considerations germane to the case and has exercised his discretion in a reasonable manner, and the selection is not perverse or contrary to law then the decision made by him should be upheld.

16. Perusal of order dated 27.04.2019 it appears that respondent No.3 (District Collector) after considering all pros and cons appointed respondent No.7 as permanent *Lambardar*. Respondents No.2 and No.1 upheld said findings of respondent No.3. There is no reason to differ with their verdict.

17. In Constitutional jurisdiction, this Court while considering cases of appointment of *Lambardar* is not supposed to sit as a Court of appeal but only has to examine if there was any jurisdictional error in the orders under challenge and whether such orders are patently against the express provision of law or the law laid down by the august Supreme Court of Pakistan and/or are perverse, arbitrary, capricious, illogical and against the record. For reference “M. NAZIR AHMAD versus MUHAMMAD ASLAM and other” (2013 SCMR 363), where it was held as under:-

“It may be pertinent to mention here, that the learned High Court while considering the cases about the appointment of Lambardars is not supposed to sit as a court of appeal, but only has to examine, if there is any jurisdictional error, in the orders passed by the revenue hierarchy and whether such orders are, patently against the express provisions of law or the law laid down by the superior courts and/or are perverse, arbitrary, capricious, illogical and against the record.”

18. The petitioner assailed the orders dated 29.03.2021, 12.06.2021 and 11.04.2023, whereby, land reserved for *Lambardari* grant was allotted to respondent No.7. It is matter of record that initially through letter No.499-

2016/174-CV dated 22.06.2018 a ban was imposed on allotment of state land to the *Lambardar(s)* under *Lambardari Scheme* which reads as under:-

“No state land shall be allotted to the lambardar under lambardari scheme till the finalization of the new policy. Even in cases where the lambardar is changed, the lambardari grant shall not be given. The said grant shall remain in superdari of District Collector.”

Respondent No.3 in the light of the said letter directed the Assistant Commissioner/Collector to get possession of the land of *lambardari* grant and hand over to the concerned revenue officer on *superdari*.

However, said letter was subsequently withdrawn through letter No.144-2020/54-CV dated 18.02.2020 whereby, it was decided as under:-

“The matter has been considered in the full board meeting of the Board of Revenue, Punjab held on 07.02.2020. It has been decided to withdraw aforementioned letter No.499-2018/174-CV dated 22.06.2018 and to lift ban on allotment of lambardari grants upon death or change of lambardar, as per policy. The letter under reference, therefore, may be considered as withdrawn. It must, however, be ensured that these will be service grants only and no proprietary rights shall be granted.”

19. In the light of above said letter respondent No.3 allotted the state land measuring 105 *kanals* 10 *marlas* to respondent No.7 as *Lambardari* grant through order dated 29.03.2021. Said order was maintained by respondent No.2 while dismissing the petitioner's appeal on 12.06.2021 and revision petition (ROR No.1153 of 2021) against said orders also met the same fate and dismissed by respondent No.1 on

11.04.2023. Respondent No.7 was appointed as permanent *Lambardar* of the concerned Chak. Her appointment remained intact upto Board of Revenue and instant Constitutional Petition filed against said orders is being dismissed through this order, therefore, she being permanent *Lambardar* of the Chak is entitled to get the land reserved for *Lambardari* grant. The revenue hierarchy has rightly passed the said orders in the light of letter, referred supra.

20. Learned counsel for the petitioner has not been able to demonstrate any infirmity, error, flaw or jurisdictional defect in the impugned orders warranting interference by this Court.

21. Epitome of above discussion is that the instant Constitutional Petition is meritless, hence, dismissed with no order as to costs.

(AHMAD NADEEM ARSHAD)
JUDGE.

Approved for reporting:

JUDGE.

A.Razzaq.